

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 19, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 5	25CV469892	Nirmaljit Kaur et al. v. Amanpreet Kaur et al.	Motion by defendant Amanpreet Kaur for an extension of time to answer the complaint. Notice is not proper; there is no proof of service. The motion was filed while defendant was self-represented. Defendant now has counsel, and it is unclear whether counsel is aware of this motion. The motion is also moot because a first amended complaint was filed after this motion. Because the motion is directed at a complaint that is no longer operative, the motion is DENIED AS MOOT. The court will prepare the order.
Line 6	2015-1-CV- 285346	Liberty Mutual Insurance Company v. Y. Chen	Defendant Yuan Chen's motion to set aside default judgment. Notice is not proper; there is no proof of service. The motion is CONTINUED to October 1, 2026, at 9:00 a.m. in Dept. 10 to allow for proper service of the motion. The court will prepare the order.

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Calendar Line 1

Case Name: Stephen Lee v. Citibank, N.A.

Case No.: 23CV409948

This is an action brought by self-represented plaintiff Stephen Lee (Lee) against defendant Citibank, N.A. (Citibank).

The original and still operative complaint was filed in January 2023. The complaint alleges Lee was an account holder with Citibank. He was allegedly defrauded by an unidentified third party who posed as a Citibank employee and convinced Lee to provide information, including a confirmation code, that allowed the third party to wire transfer the funds in Lee's Citibank account to the third party. The complaint alleges two causes of action against Citibank and Doe defendants: (1) breach of contract, a Citibank Client Manual, which the complaint quotes but does not attach; and (2) elder abuse. While the complaint references aiding and abetting and conspiracy, those are separate causes of action that are not alleged in the complaint. (See complaint at ¶¶ 11-13.) There are no exhibits attached to the complaint. Citibank filed an answer to the complaint in August 2023.

Citibank now moves for summary judgment, with Lee opposing. The matter is set for trial on August 24, 2026.

LEGAL STANDARDS—SUMMARY JUDGMENT OR ADJUDICATION

The pleadings limit the issues presented for summary judgment or summary adjudication and such a motion may not be granted or denied based on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 (*Nieto*).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an "issue of duty." (See Code Civ. Proc., § 437c, subd. (f)(1); *McCaskey v. California State Auto. Ass'n* (2010) 189 Cal.App.4th 947, 975 (*McCaskey*); *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

"A defendant seeking summary judgment must show that at least one element of the plaintiff's cause of action cannot be established, or that there is a complete defense to the cause of action." The moving party is not required to go beyond the allegations of the pleading to address unpled theories. (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 444 (*Jacobs*).) "The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue." (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar, supra*, 25 Cal.4th at p. 850.) While the same standards of admissibility govern both sides' supporting evidence, the opposition evidence is liberally construed while the moving party's evidence is strictly construed. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L'Oreal USA*,